

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

Index #
Date of filing:

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SELWYN K. BYER,

Plaintiff designates Richmond
County as the place of trial

Plaintiff,

Basis of the venue is the Locus
of Occurrence

-against-

THE CITY OF NEW YORK, POLICE OFFICER JOSEPH
COLAO-Shield # 18275 and JOHN DOES-Police Officers
as yet unidentified,

SUMMONS

Plaintiff resides at
89 Parkhill Court
Staten Island, New York 10304

Defendants.

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County of Richmond

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

POLICE OFFICER JOSEPH COLAO-Shield #
18275

Tax ID # 958471
c/o New York City Police Department- 120th
Precinct
78 Richmond Terrace
Staten Island, New York 10301

Dated: Brooklyn, New York
January 29, 2019

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND-----X
SELWYN K. BYER,

Index No.:

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER JOSEPH
COLAO-Shield # 18275 and JOHN DOES-Police Officers
as yet unidentified,Defendants.
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Plaintiff, by his attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the defendants herein, upon information and belief, respectfully shows to this Court, and alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF SELWYN K. BYER**

1. That at all times hereinafter mentioned, plaintiff was and still is a resident of the County of Richmond, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on April 4, 2018, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That on December 28, 2018, pursuant to the General Municipal Law, a Statutory 50-H hearing of plaintiff was held.

6. That on March 6, 2018, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER JOSEPH COLAO-Shield # 18275 and JOHN DOES-Police Officers as yet unidentified, as agents, servants and/or employees.

7. That on March 6, 2018, and at all times hereinafter mentioned and upon information and belief, the plaintiff, SELWYN K. BYER, was lawfully at or about the intersection of Vanderbilt Avenue and Nunley Court, in the County of Richmond, City and State of New York.

8. That on March 6, 2018, and at all times hereinafter mentioned and upon information and belief, the plaintiff, SELWYN K. BYER, was assaulted, battered and tasered at the aforementioned location by defendants, POLICE OFFICER JOSEPH COLAO-Shield # 18275 and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

9. That on March 6, 2018, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault, battery and tasing was performed knowingly, intentionally and willfully.

10. That on March 6, 2018, and at all times hereinafter mentioned and upon information and belief the defendants, POLICE OFFICER JOSEPH COLAO-Shield # 18275 and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault, battery and tasing upon the plaintiff, SELWYN K. BYER, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

11. That on March 6, 2018, and at all times hereinafter mentioned and upon information and belief, the assault, battery and tasing on the plaintiff was without probable cause and was not the result of an appropriate arrest.

12. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

13. By the reason of the foregoing, the plaintiff, SELWYN K. BYER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF SELWYN K. BYER**

14. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "13" inclusive with the same force and effect as if more fully set forth at length herein.

15. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER JOSEPH COLAO-Shield # 18275 and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered, tasered and violated the civil rights of the plaintiff, SELWYN K. BYER.

16. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER JOSEPH COLAO-Shield # 18275 and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

17. By the reason of the foregoing, the plaintiff, SELWYN K. BYER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF SELWYN K. BYER**

18. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "17" inclusive with the same force and effect as if more fully set forth at

length herein.

19. That on March 6, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JOSEPH COLAO-Shield # 18275 and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, SELWYN K. BYER.

20. The plaintiff, SELWYN K. BYER, was taken to Richmond University Medical Center, for medical treatment for the injuries sustained from said assault, battery and tasing while under police custody. Thereafter the plaintiff was sent to the 120th Precinct on March 8, 2018 and remained there until March 10, 2018. On March 10, 2018 the plaintiff was transferred from the 120th Precinct to Central Booking where he was thereafter released at 4:30 p.m.

21. That on March 6, 2018, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

22. That as a result of the aforesaid false arrest and confinement, plaintiff, SELWYN K. BYER, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

23. By the reason of the foregoing, the plaintiff, SELWYN K. BYER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF SELWYN K. BYER**

24. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "23" inclusive with the same force and effect as if more fully set forth at length herein.

25. That on March 6, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JOSEPH COLAO-Shield # 18275 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

26. That the defendants, POLICE OFFICER JOSEPH COLAO-Shield # 18275 and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

27. By the reason of the foregoing, the plaintiff, SELWYN K. BYER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF SELWYN K. BYER**

28. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "27" inclusive with the same force and effect as if more fully set forth at length herein.

29. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER JOSEPH COLAO-Shield # 18275 and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

30. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, SELWYN K. BYER.

31. That as a result of said intentional and negligent acts, the plaintiff, SELWYN K. BYER, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

32. By reason of the foregoing, the plaintiff, SELWYN K. BYER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF SELWYN K. BYER**

33. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "32" inclusive with the same force and effect as if more fully set forth at length herein.

34. That on March 6, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JOSEPH COLAO-Shield # 18275 and JOHN DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

35. That on March 6, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JOSEPH COLAO-Shield # 18275 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff.

36. That on March 6, 2018, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

37. By reason of the foregoing, plaintiff, SELWYN K. BYER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF SELWYN K. BYER**

38. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "37" inclusive with the same force and effect as if more fully set forth at

length herein.

39. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff.

40. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER JOSEPH COLAO-Shield # 18275 and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

41. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

42. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

43. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER JOSEPH COLAO-Shield # 18275 and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

44. As a direct and proximate result of this unlawful conduct, the plaintiff, SELWYN K. BYER, sustained the damages hereinbefore alleged.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF SELWYN K. BYER**

45. The plaintiff repeats and realleges each and every allegation set forth above

numbered "1" through "44" inclusive with the same force and effect as if more fully set forth at length herein.

46. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

47. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER JOSEPH COLAO-Shield # 18275 and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

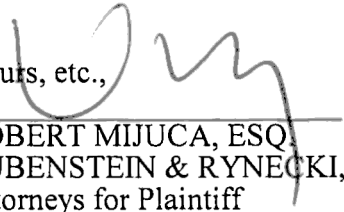
48. By the reason of the foregoing, the plaintiff, SELWYN K. BYER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, SELWYN K. BYER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, SELWYN K. BYER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, SELWYN K. BYER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, SELWYN K. BYER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, SELWYN K. BYER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, SELWYN K. BYER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, SELWYN K. BYER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff, SELWYN K. BYER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action;

together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
January 29, 2019

Yours, etc.,



ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiff
SELWYN K. BYER
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020
File No.: 18SB03-06

ATTORNEY'S VERIFICATION BY AFFIRMATION

ROBERT MIJUCA, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member at RUBENSTEIN & RYNECKI, ESQS., attorneys of record for the Plaintiff/Plaintiffs, I have read the annexed

SUMMONS AND COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters

I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the Plaintiff/Plaintiffs is because the Plaintiff/Plaintiffs is/are not presently in the County wherein the attorneys for the Plaintiff/Plaintiffs maintain their offices.

Dated: Brooklyn, New York
January 29, 2019


ROBERT MIJUCA, ESQ.